DEARTMENT OF HEALTH & HUMAN SERVICES

NOTICE OF FINAL INTERVIEW AND RIGHT TO FILE FORMAL

Date: December 30, 2025

To: Kevin Turnage

From: Michelle Homer, EEO Counselor

Subject: Notice of Final Interview and Notice of Right to File a Formal Discrimination Complaint
Agency File No.: HHS-IHS-0001-2026

You contacted the EEO Office on October 8, 2025 and have indicated your desire to address your workplace issues related to: Retaliation, based on Sex (Male), EPA (Male) and Religion (Christian), when you were placed on administrative, investigative leave, confiscation of government-issued property, denied access to agency computer systems, demanded to return all government property with less than 90 minutes' notice, and other retaliatory actions that you feel occurred after you reported sexual harassment, hostile work environment, subsequent EEO filings, whistleblower disclosures to the Office of Inspector General, the Office of Special Counsel, and the Merit Systems Protection Board. The informal stage of limited inquiry has been completed without resolution and this issuance of **the notice of the right to file** closes the informal stage.

Your Equal Employment Opportunity (EEO) discrimination pre-complaint has not been resolved, and you are now entitled to file a formal complaint of discrimination under Title 29 Code of Federal Regulations (C.F.R.) Part 1614. If you believe that you have been discriminated against on the bases of race, color, religion, sex (including pregnancy, sexual orientation, and gender identity), national origin, age, mental/physical disability, GINA and/or retaliation for participation in protected EEO activities, or for opposing an unlawful employment practice under the anti-discrimination laws, **you have the right to file a formal complaint of discrimination within fifteen (15) calendar days after your receipt of this notice** pursuant to 29 C.F.R. § 1614.105(d).

If you wish to file a formal complaint, complete and sign the "Formal Individual Complaint Form for Employment Discrimination" and email the Formal Complaint to the following email address:

IHSDMEEOStaff@ihs.gov

If you are unable to email the Formal EEO Complaint to the email address listed above, please mail the Formal Complaint to the following address:

CDR Lenora Littledeer, Acting EEO Director
EEO Staff Director
5600 Fishers Lane, Mailstop 08E61
Rockville, Maryland 20857

A complaint shall be deemed timely if it is received or postmarked before the expiration of the 15 calendar day filing period, or in the absence of a legible postmark, if it is received by mail within five calendar days of the expiration of the filing period.

The complaint must contain only those issues either specifically discussed with the EEO Counselor or issues that are like or related to those discussed. It must also state whether you have filed a grievance under a negotiated grievance procedure or an appeal to the Merit Systems Protection Board (MSPB) on the same claims.

Should you file a formal complaint with the Agency, it is your responsibility to immediately notify this office in writing if you retain an attorney or any other type of representative. You and/or your representative will receive a written acknowledgment of your formal discrimination complaint from the appropriate Agency official.

Please refer to the "Notice of Rights and Responsibilities" for specific information in connection with the processing of your EEO complaint, to include your rights when alleging age discrimination, a violation of the Equal Pay Act, or raising a claim that is appealable to the MSPB. Should you have further questions regarding the EEO complaint process, please contact Angela Porter, Director, DMEEO Staff, at (301) 443-1108.

_____ _____

Kevin Turnage Date

Attachment (Formal Complaint Form – If you wish to file a formal complaint fill out the formal complaint form and submit)

Department of Health & Human Services

INDIAN HEALTH SERVICE
FORMAL INDIVIDUAL COMPLAINT FORM FOR EMPLOYMENT DISCRIMINATION
Agency File No.: HHS-IHS-0001-2026

FORMAL COMPLAINT OF DISCRIMINATION IN THE FEDERAL GOVERNMENT

PRIVACY Act Statement (6 U.S.C. Section 552A)

AUTHORITY: 42 U.S.C. 2000e-16(b) and (c); 29 U.S.C. Chapter 14; E.O. 12106.
Purpose: Used for processing of complaints of discrimination because of race, color, national origin, religion, sex, age, physical or mental disability or reprisal by the agency civilian employees, former employees or applicant for employment.

Routine Uses: Information will be used (a) as a data source for complaint information for production of summary descriptive statistics and analytical studies of complaints processing and resolution efforts and may also be used to respond to general requests for information under the Freedom of Information Act; (b) to respond to request from legitimate outside individuals or agencies (Congress, White House, Equal Employment Opportunity Commission) regarding the status of a complaint or appeal; or (c) to adjudicate a complaint or appeal.

Disclosure: Voluntary, however, failure to complete all appropriate portions of this form may lead to rejection of a complaint on basis of inadequate data on which to determine if a complaint is acceptable.

1. **Your name as complainant**:
Kevin D. Turnage

2. **Your home address**:
1003 E Pinto Ct Gilbert, AZ 85296-3021

3a. **Your home phone No:** :
901-220-8664

3b. **Work Telephone**:

4. **Name and address of the Agency where you currently work**:
Indian Health Service
Phoenix Indian Medical Center
4212 N 16th Street
Phoenix, AZ 85016

5. **Do your have a representative?**

☐ a. YES (Complete Item 6) ☒ b. NO

6. **If yes, provide name, address and teephone number of your representative::**

Is your representative an attorney?

☐ YES ☒ NO

7a. **Name and address of the Agency (Duty Station) where the alleged discrimination occurred:**
Indian Health Service
Phoenix Indian Medical Center
4212 N 16th Street
Phoenix, AZ 85016

7b. **Name and Title of Management Official responsible for the alleged discrimination:**
Debra Ward Lund
Kathy Dill
Clinton Pope
Stephanie Aird
Endreya McCabe
Naomi Hixson

8. **Date of most recent act of alleged discrimination**:
12/30/2025

9. **Are you a bargaining unit employee?**

☐ YES ☒ NO

10. **Are you a Federal Employee or job Applicant?**

☒ a. EMPLOYEE: Position Title, Job Series, Grade
Policy and Procedure Nurse 0610 GS12/10

☐ b. APPLICANT

11. **Reason you believe you were discriminated against** Check all that apply below:

	a. **Race** (If so, state your Race):		**e. Disability** (If so, state your Disability): ☑ Physical: Diabetes Mellitus Type 1 ☐ Mental:
	b. Color (If so, state your skin Color):		f. **Age** (If so, state your Age and Date of Birth): 52 04/17/1973
	c. Religion: (If so, state your Religion):		g. **Sex:** (If so, state your Sex or LGBT status):
	d. **National origin**: (If so, state your National Origin):		h. **Retaliation/reprisal** (If so, state date and nature of your participation in an EEO-protected activity or opposition to discriminatory practices.): See Attached

12 a. Did you discuss your issue with an EEO counselor?	12b. **If "yes," name of EEO Counselor:**	12c. **Date you first contacted an EEO Counselor**:	13. **Date received you notice of a final interview and right to file:**
☑ a. YES (Complete 12b) ☐ b. NO	Michelle Homer	10/08/2025	12/30/2025

14. **SELECT THE ISSUE(S)/CLAIM(S) BELOW THAT BEST DESCRIBE(S) YOUR COMPLAINT.** Briefly explain how you were discriminated against and identify the specific incidents or events and dates on which they occurred; *i.e.*, tell how you were treated differently from other employees or applicants because of your race, color, religion, sex, national origin, age, mental or physical disability, or retaliation. See Instructions.

Issue: Check all that apply		Specifically Explain:
Appointment/Hire		
Harassment (non-sexual)	✓	See Attached
Promotion/Selection		
Disciplinary Action	✓	See Attached
Performance Appraisal/ Evaluation		
Training		
Assignment of Duties	✓	See Attached
Duty Hours	✓	See Attached

Medical Examination		
Reasonable Accommodation	✓	See Attached
Awards		
Reassignment Denied/Directed		
Reinstatement		
Retirement		
Time and Attendance		
Pay- Including Overtime		
Conversion to Full-time		
Examination/Test		
Terms and Conditions of Employment		

Additional narrative explaining the reasons you believe you were discriminated against. (Please describe the specific claim here if you did not identify one of the claims above.)

See Attached

15. **Remedy/Resolution:** Please describe the terms, conditions, corrective actions, and remedial relief you are seeking in Resolving or adjudicating your complaint.

See Attached

16. **Have any of the incidents listed in item 14 been appealed to The Merit System Protection Board (MSPB) or filed under a Negotiated Grievance Procedure?**

☐ a. YES Explain. (Include date and case number.)

☑ b. NO

17. **SIGNATURE OF COMPLAINANT**:

Kevin Turnage Digitally signed by Kevin Turnage Date: 2025.12.30 17:08:21 -07'00'

18. **Date you signed your complaint:**

December 30, 2025

19. **Date Complaint filed** (EEO Office use):

READ INSTRUCTIONS CAREFULLY

This form should be used only if you, as an applicant for Federal employment, or a current or former Federal employee, believe you have been discriminated against based on your race, color, religion, sex, national origin, age, disability, or retaliation by a Federal agency, and have presented the matter for informal resolution to an Equal Employment Opportunity (EEO) Counselor, and you have either received your Notice of Final Interview/Right to File Formal or more than thirty (30) calendar days have elapsed from your date of initial contact, and the matter remains unresolved.

A formal complaint of discrimination must be filed within fifteen (15) calendar days of your, or your attorney's, if applicable, receipt of the Notice of Final Interview/Right to File Formal. You may submit this form by hand-delivery/mail to [OPDIV EEO Office Address] or fax [OPDIV EEO Office Fax #]. It must be postmarked or received on or before the fifteenth (15th) calendar day from your/your attorney's receipt of the Notice of Final Interview/Right to File Formal. It is your responsibility to keep the [OPDIV EEO Office] informed of your current address. Should your address or contact information change, you must notify the HQ Office immediately.

In completing this form, it is very important that:

1. You provide the date(s) of the alleged discriminatory action(s). Dates are used to determine timeliness, and in accordance with the Equal Employment Opportunity Commission's (EEOC) regulations, an individual must initiate contact with an EEO Counselor within forty-five (45) calendar days of the date the incident(s) occurred or, if a personnel action, within forty-five (45) calendar days of its effective date.
2. You state clearly the action(s) which you allege a Federal agency took or failed to take that you believe to be discriminatory. What action(s) was taken or not taken that led you to contact an EEO Counselor?
3. You focus on the claims(s) raised with the EEO Counselor or like or related claim(s). Your formal complaint should include only those claim(s) on which you were counseled and wish to pursue through the formal complaint process. This may be all or only some of the claim(s) raised during the pre-complaint process. You decide what claim(s) you want to continue to pursue. Claim(s) raised in the formal filing that were not raised with the EEO Counselor or are not like or related to the claim(s) raised can be dismissed or referred for EEO counseling.

Example: On September 20, 2005, my immediate supervisor, John Doe, advised me that I was not selected for a GS-14, Attorney position under Vacancy Announcement Number H-05-89. I believe the non-selection was based on my race (Asian) because the selectee, Tom Jones, is White and has less litigation experience than I do. Also, on October 3, 2005, I received a Reprimand from Mr. Doe. I believe the Reprimand was issued in retaliation for initiating this EEO complaint on September 22, 2005. Other employees such as Mary Smith arrive late for work but are not disciplined.

Should you need additional space in completing this form, attachments are permitted. However, please note that it is not necessary or encouraged for you to submit documentary evidence relating to the merits of your complaint with your formal filing. Such information should be provided to an EEO investigator if your complaint is accepted for investigation. If the OPDIV EEO Office needs additional information or clarification in accepting or dismissing your claim(s), you will be contacted.

Subsequent to filing this formal complaint, you will receive a letter from the OPDIV EEO Office acknowledging receipt of your complaint and providing you with specific information about your rights and responsibilities. Should you have questions in the interim, please contact Loretta Grey Cloud at (301) 443-1108.

If any or all of your claims are accepted for investigation, you will be contacted by an EEO investigator. You should cooperate with and present to the investigator all evidence and documentation you have in support of your claim(s) as well as the names of potential witnesses. Should your complaint be dismissed and not accepted for investigation, you will be advised of appropriate appeal rights.